

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN THE DEMOCRATIC REPUBLIC OF CONGO

Complete Community Opposition How-To

This guide uses the Congolese terms and bodies you'll actually run into — the EIES and the PGES, the Congolese Environment Agency (ACE), the cahier des charges and the 0.3% allocation, protected-area and World Heritage protection, and the international leverage that has delivered where domestic routes could not — and explains each in plain words the first time. In much of the DRC, and above all in the conflict-affected east, resistance is dangerous, so this guide puts your safety first.

INTRODUCTION & FRAMEWORK

Virunga National Park is Africa's oldest, a UNESCO World Heritage Site in the eastern DRC and home to about half the world's mountain gorillas. When the British oil company **SOCO International** moved to explore for oil inside it — with the government's backing — the response was a coalition that reached from the park to the world. **Congolese communities around Virunga, the park's rangers, and Congolese scientists and lawyers** joined **WWF, Global Witness, and campaigners worldwide**; WWF filed a complaint against SOCO under the **OECD Guidelines for Multinational Enterprises**; the Oscar-nominated documentary "**Virunga**" exposed the company's conduct; and investors and the World Heritage Committee applied their weight. In **June 2014, SOCO announced it would withdraw and not drill in the park**. A World Heritage site was pulled back from the oil frontier — not mainly through the domestic courts, but through international leverage, exposure, and a coalition that refused to let it happen quietly.

The Virunga coalition — Congolese communities, rangers, scientists, and lawyers alongside WWF and Global Witness — pulled a World Heritage site back from the oil frontier not through the domestic courts but through international leverage, exposure, and coalition, and the tools that carried it are real, if the ground is dangerous. The strongest are **international leverage** — a complaint against SOCO under the **OECD Guidelines for Multinational Enterprises**, the exposure of the "Virunga" documentary, and the weight of investors and the **World Heritage Committee** — and the park's **protected-area and World Heritage status** itself. Domestic law adds enforceable entitlements attached to the project: under **Law No. 11/009 of 2011**, any significant project must undergo an **environmental and social impact study (EIES)** with an approved management plan (**PGES**), evaluated by the **Congolese Environment Agency (ACE)**; the 2014 decree names **local communities and Indigenous peoples as stakeholders**; and the law requires a **cahier des charges** — a binding commitments agreement with the local communities — and a **0.3% allocation** of turnover to local development managed by a body that must include community representatives. But these tools have grave limits, and this guide states them plainly. The win was **contested and must be defended** — the wording left SOCO room to return, and the government has since moved to **re-auction oil blocks overlapping the park**. And the danger is grave: the eastern DRC is wracked by armed conflict, **Virunga's rangers have been killed in the line of duty**, and civic space is fragile. Resistance here can succeed, but it leans on international leverage, the law's community entitlements, and protected-area status far more than on domestic mobilisation — and your people's safety comes before any outcome.

The Whole Strategy in One Idea

A big project looks unstoppable, but it's a chain of approvals and entitlements, and a chain breaks at its weakest link. A Congolese project needs its **EIES/PGES approved by the ACE**; it must negotiate a **cahier des charges** with the communities and fund the **0.3% allocation**; a project in or near a **protected area or World Heritage site** faces extra protection; and — the Virunga lesson — a foreign-backed project is exposed to **international leverage**. Every one of those is a link you can grab. **Find the one closest to your hand and pull — and protect your people above all.**

Be Honest About Which Fight You're In

Before you spend a year on this, work out your real situation — safety first:

- **If it's in or near a protected area or World Heritage site, that plus international leverage is your sharpest lever** — Virunga was pulled back that way.
- **The community entitlements — the cahier des charges and the 0.3% — are enforceable and distinctive** — and who represents the community decides whether they deliver.
- **If a foreign company or financier backs it, international mechanisms (OECD complaints, investors, exposure) are live and powerful.**
- **The danger is grave, especially in the conflict-affected east** — rangers have been killed, so work carefully, lawfully, and never alone.

Read the whole guide once before you move. Two habits run through it: **use the external and entitlement levers** — international leverage, the cahier des charges and 0.3%, and protected-area status — and **combine them** safely: the documents, the EIES, the entitlements, the international campaign, careful media. That combination, kept safe, is how Virunga was defended.

HOW THE SYSTEM WORKS

To break the chain you have to see it — who decides, how a project moves, and who's watching.

Who Actually Decides

The core environmental decision is the **EIES/PGES**, evaluated and approved by the **Congolese Environment Agency (ACE)** under Law No. 11/009 of 2011. Sector authorities grant mining, oil, and forestry rights. The **cahier des charges** must be negotiated with local communities, and the **0.3% allocation** funds local development through a body including community representatives. **Protected areas and World Heritage sites** carry extra protection. And for a foreign-backed project, decisions and pressure **abroad** — investors, OECD complaints, the World Heritage Committee — can be decisive. Know which decision you can reach — and remember the entitlements and the international leverage are often your strongest points.

How a Project Moves — and Where You Jump In

The EIES and stakeholder process. The developer prepares the **EIES/PGES**, with local communities and Indigenous peoples as **stakeholders**. *Your opening — and it arms every later step:* obtain the study (you are entitled to environmental information), engage as a named stakeholder, and expose its flaws.

The cahier des charges and the 0.3%. The company must negotiate binding commitments with the communities and fund local development. *Your opening:* insist on credible community representation and real commitments — or challenge a sham.

Protected-area status. *Your opening:* a project in or near a protected area or World Heritage site faces extra protection — and international scrutiny.

Financing and foreign backing. *Your opening — often decisive:* investors, OECD complaints, and exposure.

Follow the Money and the Permissions

Dig up three things. **Who's behind it and who owns them — and who finances it** (Virunga's threat came from a foreign-listed company exposed to investors and an OECD complaint). **What it still needs** — the EIES not approved, the cahier des charges not agreed, financing not closed: whatever's missing is the soft spot. **Who's paying** — foreign companies and financiers with reputations and standards they can be held to.

Who's Supposed to Be Watching

Each is an ally or an arena — used carefully. The **ACE** evaluates the EIES. The **cahier des charges and 0.3% bodies** carry community entitlements. **Protected-area authorities (the ICCN) and the World Heritage Committee** guard the parks. **International mechanisms** — OECD National Contact Points, investors, and campaigners — reach a foreign backer. And — with great care given the danger — the **DRC's local communities, Indigenous peoples, rangers, and the careful civil society and media that operate** are the forces that reach furthest, as the Virunga coalition showed.

QUICK REFERENCE: SUCCESS RATES

Size up the odds honestly. These are rough patterns, not promises. What most moves them: whether a protected area is engaged, whether foreign backing exposes it to international leverage, whether the entitlements can be enforced — and, always, the danger.

What you do	Roughly works	How long	Cost	What "works" means
Just gather documents (safely)	5–10%	weeks	low	The base for everything else
Engaging the EIES as a stakeholder	15–35%	during assessment	low	On record; conditions or a redo
Enforcing the cahier des charges / 0.3%	25–50%	months–yr	low	Commitments and funds delivered
Protected-area / World Heritage ground	30–55%	months–yr	low	Extra protection; project pulled back
International leverage (OECD, investors, exposure)	30–55%	months–yr	low	Foreign backer withdraws (Virunga)
Courts	10–30%	1–3 yr	low, risky	Uneven; low expectations
Everything together (protected area, foreign backer, world watching)	35–55%	1–3 yr	low	Pulled back, delayed, entitlements delivered
Everything together (state-backed, conflict zone)	10–30%	years	low, dangerous	Delayed, exposed — protect people first

The levers that move the needle most are **international leverage** (OECD complaints, investors, exposure), **protected-area/World Heritage status**, and the **enforceable community entitlements**. Virunga shows the ceiling (a World Heritage site pulled back from oil) and the honest limit (a contested win, in a conflict zone where rangers die). So aim for a pulled-back, delayed, or entitlement-delivering outcome — and protect your people above all.

On cost and safety: engaging the EIES, the entitlements, and international mechanisms is low-cost, and international networks bring the OECD complaints and campaigns. But the danger is grave, especially in the east — work carefully and lawfully, protect the vulnerable, never act alone, and route risk through lawyers and international allies.

STEP 1: TARGET IDENTIFICATION

Being against "the project" is weak. Being specific — this EIES, this entitlement, this foreign backer — is strong. Answer five questions in writing, safely.

1. What is it, and who's behind it — and who finances it? Name the project, the company, its foreign parent, and its investors.

2. Where is it, and what does it touch? Get the footprint and lay it over **protected areas and World Heritage sites** (like Virunga), Indigenous and community lands, rivers and forests, communities. **A protected area or World Heritage site is your sharpest lever**, so this map matters — Virunga turned on a World Heritage park.

3. What stage is it at, and what's the next deadline? Is the EIES under way? Has the cahier des charges been negotiated? These openings are time-bound — and financing is a live target until it closes.

4. What does it still need that it lacks? An EIES not approved, a cahier des charges not agreed, financing not closed. The missing piece is the soft spot.

5. Who else is affected, and who already opposes it — and who will represent the community? Neighbouring communities, Indigenous peoples, rangers, international networks — and, crucially, **who speaks for the community** in the entitlement process. Virunga united the park and the world.

What this looks like in real life. A community learns an oil or mining project is planned in or near a protected area, backed by a foreign company. The five questions yield: a foreign-backed company (and its investors) behind it; a site in a protected area (the sharp lever); an EIES under way and a cahier des charges pending; a project still needing approval and financing; and a coalition of communities, rangers, and international allies. That's the Virunga pattern — invoke the protected-area status, engage the EIES and entitlements, and bring international leverage.

STEP 2: DOCUMENTATION

The difference between a community that can fight and one that can't is proof — gathered **safely**. Build it in three layers.

Layer one: the paper trail. Get the documents the decisions rest on — the **EIES and PGES**, the ACE's evaluation, the **cahier des charges** and the **0.3% arrangements**, the protected-area boundaries, and the **financing**. You are entitled to environmental information; demand it. Then read them hard for flaws — an understated impact, an ignored alternative, a sham cahier des charges, a project encroaching on a protected area.

Layer two: the ground truth. Dated, located photographs and video of the site, the park, the forest, the rivers — baseline evidence most of all — and, carefully, the testimony of affected residents. In this dangerous, conflict-affected context, weigh the risk to anyone documenting.

Layer three: the map of protected areas and financing. Lay the project over the protected areas and World Heritage sites, Indigenous and community lands — and map the **foreign backer and its investors**, the international pressure points. This feeds the EIES engagement, the entitlement claim, and the international campaign.

WHAT TO GATHER, AND WHERE TO FIND IT

- **The EIES/PGES, the ACE evaluation, the cahier des charges and 0.3% arrangements, the protected-area boundaries, the financing** — from the ACE, the protected-area authority (ICCN), and public and investor filings (8A).
- **Community-representation records** — who speaks for the community in the entitlement process.
- **Ownership and the foreign backer** — corporate and investor records.
- **The protected-area-and-financing map** — the parks, community lands, and the foreign backer, laid over the site.
- **Dated evidence and consented testimony** — photographs marked with date and place, gathered so no one is put at risk.

STEP 3: BUILDING LOCAL OPPOSITION

Documents give you a case; people give you power — and Virunga was defended by a coalition from the park to the world. Build it **safely**, and get your representation right. Four moves.

Start with a tight, trusted core. The residents most affected, the people who know the land and park, a few tireless organisers, and respected community and Indigenous authorities — people you trust.

Get community representation right — it is the mechanism. In the DRC, who represents the community is not internal politics: it is **how the cahier des charges and the 0.3% deliver or fail**. Nominate credible, accountable representatives — a community that can do this is fundamentally stronger.

Reach international networks — early and deliberately. This is the DRC's distinctive strength: international networks bring the **OECD complaints, investor pressure, and exposure** that pulled SOCO from Virunga. Reach them early, especially where a foreign company or a protected area is involved.

Bring in lawyers and rangers/protected-area allies — and protect people above all. Lawyers who run environmental and entitlement matters; where a park is involved, the protected-area authority and rangers are allies. The danger is grave — rangers have been killed — so keep everything careful and lawful, protect the vulnerable, never act alone, and route risk through lawyers and international allies.

Build to last, and defend the win. Congolese fights run for years, and — the Virunga lesson — a win can be reopened (oil blocks re-auctioned). Build clear roles, a secure archive, careful communications, a way to decide together, a serious safety plan, and a plan to defend a win.

STEP 4: THE EIES, THE ENTITLEMENTS & INTERNATIONAL LEVERAGE

The DRC's levers are distinctive — the entitlements and the international mechanisms — and safety comes first.

Engage the EIES as a Stakeholder

Everything downstream is stronger if you engaged the **EIES** as a named **stakeholder** — obtained the study (you are entitled to it), and exposed its flaws before the ACE approves the PGES. A defective EIES is a real ground.

The Cahier des Charges and the 0.3% — Enforceable Entitlements

The DRC's distinctive lever: the law requires the company to negotiate a **cahier des charges** — binding commitments — **with the local communities**, and to fund a **0.3% allocation** for local development through a body that **must include community representatives**. These are enforceable entitlements attached to the project. Insist on credible community representation, real commitments, and delivery — and challenge a sham. This is often where your leverage is most concrete.

Protected Areas and International Leverage

Two more sharp levers. A project in or near a **protected area or World Heritage site** faces extra protection and international scrutiny — the World Heritage Committee itself called for Virunga's oil permits to be cancelled. And **international leverage** — **OECD complaints** against a foreign company, **investor pressure**, and **exposure** (as the "Virunga" documentary did) — is live and powerful, and pulled SOCO out.

The Honest Limits

Straight talk: the entitlements, protected-area status, and international leverage are real levers, but the courts are uneven, enforcement is weak, the state backs extraction, and — the gravest limit — much of the country, especially the east, is dangerous and conflict-affected. So use the strong tools — the EIES, the cahier des charges and 0.3%, protected-area status, and international leverage — protect your people above all, plan to defend a win, and count a pulled-back or delayed project, delivered entitlements, and protection as wins.

TURNING YOUR EVIDENCE INTO ARGUMENTS

A stack of documents wins nothing until you aim it.

A protected area becomes a wall. Not "the project is bad" but *"this is a World Heritage site, and the World Heritage Committee has called for these permits to be cancelled,"* as at Virunga.

An entitlement becomes a demand. *"The law requires a cahier des charges negotiated with us and a 0.3% allocation managed with our representatives — deliver them, or the process is a sham."*

A foreign backer becomes a lever. *"Your company's conduct here breaches the OECD Guidelines and exposes your investors,"* as SOCO found.

The harm becomes an international story. *"The park, the gorillas, the rivers and forests our communities depend on — for oil we never agreed to."*

Match it to the venue: the EIES flaws to the ACE; the entitlements to the cahier des charges and 0.3% bodies; the foreign backer to OECD complaints and investors; the protected area to the World Heritage Committee; the human story — carefully — to the international press.

STEP 5: MEDIA STRATEGY

In the DRC, international attention and exposure are decisive — the "Virunga" documentary and the global campaign pulled SOCO out — but much of the country is dangerous, so handle media with great care.

Lead with people and place, not confrontation. Not "the government is corrupt" but "the park, the gorillas, the rivers and forests our communities depend on — for oil we never agreed to." Use your strongest material: dated evidence, the protected-area-and-backer map, and — carefully — human voices, without exposing anyone.

Work several audiences at once — reach the backers and the world. Careful domestic channels build attention; international media, investors, and the World Heritage system reach the foreign backer and offer a measure of protection. Make it easy: captioned evidence, accurate summaries, a map, careful voices — and let the community decide what is said and by whom.

Two hard rules. Accuracy above all — one exaggeration can be used against you. And protect people above everything — in a conflict zone, weigh every public act for safety.

EMAILS & LETTERS

Make them your own; keep them factual and calm; keep copies safely; and protect anyone at risk.

8A — Request for the EIES and records (to the ACE).

Subject: Demande d'information environnementale — [project].

"We, residents of [place], as stakeholders, request the EIES and PGES, the ACE evaluation, the cahier des charges and 0.3% arrangements, and the protected-area boundaries for [project] at [location]. [Contact.]"

8B — Engaging the EIES / objecting.

Subject: Observations sur l'EIES — [project].

"We, residents of [place], as stakeholders in the EIES for [project], object: [it encroaches on a protected area; it understates the impact; the study is defective]. We ask that the PGES be refused. [Attach evidence.]"

8C — On the cahier des charges / 0.3%.

Subject: Cahier des charges et allocation de 0,3% — [project].

"The law requires a cahier des charges negotiated with our community and a 0.3% allocation managed with our representatives. [The process excluded us / offered no real commitments.] We ask that it be done properly, with our credible representatives. [Attach evidence.]"

8D — OECD complaint / to a foreign backer.

Subject: OECD Guidelines and human-rights/environmental risk — [project].

"We understand [company] [operates / finances] [project] at [location], in or near [protected area], without proper process. This engages the OECD Guidelines. We ask you to reconsider — as SOCO withdrew from Virunga. [Contact and evidence summary.]"

8E — To the World Heritage / protected-area authorities.

Subject: Threat to [protected area / World Heritage site] — [project].

"We report that [project] threatens [protected area] at [location]. We ask that the [World Heritage Committee / protected-area authority] act, as it did for Virunga. [Attach evidence.]"

8F — To a lawyer / careful civil-society network.

Subject: Support — [project].

"Our community faces [project] in or near [protected area], backed by [foreign company]. We've gathered [the EIES, entitlement records, photographs] and ask for legal support on the EIES and entitlements, and help with an OECD complaint, as partners. [Contact and evidence summary.]"

8G — To the international press (carefully).

Subject: [Community] moves to protect [park / land] from [project].

"For generations the people of [place] have lived beside [the park / land] at [location] — a place of world importance. Now [project] threatens it. We can provide dated evidence, a map — and, carefully, interviews. [Contact.]"

8H — Rallying the community (safely).

Subject: We can protect our park — here's how, safely.

"[Project] threatens [our park / land]. At Virunga, communities, rangers, and the world made an oil company withdraw. Through the EIES, our entitlements, the protected-area status, and international leverage, we have a real chance — protecting one another above all, never acting alone. Please join us — careful and safe. [Contact.]"

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

If you must move fast and lean, do these six things, in order, and safely:

1. **Nail down the project, whether it touches a protected area, and its foreign backer.** These are your sharpest levers.
2. **Engage the EIES as a stakeholder and object (8B); demand the study (8A).**
3. **Get your community representation right, and insist on a real cahier des charges and 0.3% (8C).**
4. **Photograph everything, with dates and places, safely.**
5. **File an OECD complaint / press the foreign backer and its investors (8D), and alert the protected-area/World Heritage authorities (8E).**
6. **Reach international networks and, carefully, the press (8G/8H).** Virunga was defended this way.

Even lean, those six use the entitlements, the protected-area status, and the international leverage that work here — while keeping your people safe.

WHEN THE SYSTEM IS TILTED

The DRC's tools are real but the tilt is severe, so plan for it — safety first.

When the state backs extraction. Lean on the **external** levers — international leverage, OECD complaints, investors, and protected-area status — and the enforceable entitlements, and protect your people above all.

When it's a conflict zone. In the east especially, the danger is extreme — rangers have been killed. Work carefully and lawfully, never act alone, protect the vulnerable, and use international attention as a shield.

When the entitlements are a sham. A cahier des charges that excluded you, or a 0.3% captured by non-representatives, is a failure of the law. Insist on credible representation and delivery — this is your concrete leverage.

When a win is reopened. This is the Virunga lesson: blocks can be re-auctioned. Guard your win — keep the coalition, the international attention, and the vigilance alive.

WHEN IT'S ACTUAL CORRUPTION — AND WHO'S CAPTURED

The DRC has severe, documented capture of extraction, concessions, and the entitlement mechanisms, so this matters — approach it with great care.

How to spot it. EIES approved against the evidence; a cahier des charges signed with non-representatives; the 0.3% diverted; concessions granted in protected areas; benefits to the connected while the community carries the harm.

Who's supposed to guard against it. Domestic oversight is weak and the courts uneven. The strongest checks are the **entitlement mechanisms** (properly represented), **international leverage** (OECD complaints, investors), the **World Heritage system**, and international exposure. The **ACE's** evaluation and the **protected-area authorities** are the domestic machinery to insist upon.

How to fight it safely. Document precisely and factually — how the process was bent, who benefits, what the law required — and keep clear the line between what you can prove and what you suspect. Do not make public accusations you can't back; in a conflict zone they can be dangerous. Route serious evidence to international mechanisms, trusted lawyers, and international networks, protect witnesses above all, and pair exposure with the entitlement and EIES claims.

INTEGRATION & TIMELINE

Don't run these steps one after another — run them together, safely. The documents build your proof; pinning down the protected area and the foreign backer aims it; getting your representation right unlocks the entitlements; the EIES, the entitlements, and international leverage press the case; careful attention protects your people. Together they multiply. One at a time, they stall — and defend the win.

Early on (weeks 1–8): nail down the project, its footprint, any protected area, and its backer; engage the EIES as a stakeholder; get your community representation right and demand a real cahier des charges and 0.3%; request the records safely; reach international networks and a lawyer.

In the thick of it (months–years): press the EIES and the entitlements; file an OECD complaint and press investors; alert the World Heritage/protected-area authorities; use careful international attention.

The long haul (years): carry the entitlement and international matters through; keep the coalition and the attention alive; hold the line for a pulled-back or delayed project, delivered entitlements, and protection — and guard the win against revival, protecting your people throughout.

FINAL ASSESSMENT

Stopping a destructive project in the DRC can be done — a coalition of communities, rangers, and the world pulled Virunga back from oil and made a foreign company withdraw. Hold both truths, and never forget the danger: Virunga's rangers have died protecting it. The DRC's tools are distinctive: enforceable community entitlements — the cahier des charges and the 0.3% — attached to the project; protected-area and World Heritage status; and international leverage (OECD complaints, investors, exposure) that is live and powerful. And the constraints are grave: weak courts and enforcement, a state that backs extraction, a contested win that can be reopened, and lethal danger, above all in the conflict-affected east.

Here's the discipline that wins, and it stays careful, lawful, and safe. Nail down whether it touches a protected area and who backs it abroad — your sharpest levers. Engage the EIES as a stakeholder, get your community representation right, and insist on a real cahier des charges and 0.3%. File an OECD complaint, press investors, and alert the World Heritage authorities. Reach international networks, and protect your people above every outcome — never acting alone. Count a pulled-back or delayed project, delivered entitlements, and the safety of your people as wins. That's what Virunga did — the communities, the rangers, and the world's leverage together — and the rangers it has cost their lives are the reason your first duty is to protect one another. So can you — carefully, and safely.